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# NEW LIMITS APPROVED ON CONCEALED GUN PERMITS - State lawmakers send measure to Newsom for signature; court challenge likely

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SACRAMENTO A year after Democratic infightingtankedahigh-profileguncontrol bill in Sacramento, California lawmakers successfully approved legislation on Tuesday to limit who can carry firearms in public, setting up a likely legal challenge that could reach the SupremeCourt.

State Sen. Anthony Portantino, D-Burbank, introduced Senate Bill 2 in response to a Supreme Court ruling last year that struck down restrictive and subjective concealed-carry laws as unconstitutional, leaving California and a handful of other Democratic-ledstates scrambling to rewrite their gun laws.

Despite support from both Gov.GavinNewsomandAttorney General Rob Bonta, bickering within theDemocratic caucus last year led to the bill's demise, an unceremonious endtowhatwas considered priority legislation for the legislative leadership. Portantino reintroduced the measure ahead of the 2023 legislative session, and vowedtowinenoughvotes to send it toNewsom's desk this year.

Two high-profile mass shootings in Half Moon Bay and Monterey Park this year increased pressure on Democrats to crack down on gun violence in California. That's despite the state having some of the most prohibitive gun laws in the country, some of which have been struck down by the federal courts. SenateBill 2 is one of a handful ofmajor gun-controlmeasures introduced this year. Its passage follows the Legislature's recent approval of a historic bill to impose an 11 percent tax on dealers and manufacturers for sales of guns and ammunition.

"There's a reason why you're far less likely to die frombullets in California," Newsom said in a statement after the Assembly approved SB 2. "We're using every tool we can to make our streets andneighborhoods safer fromgun violence." The Assembly approved SB 2 on Monday in a 48-21 vote and the Senate finalized it 28-8, with Republicans and oneDemocrat voting against the measure. It now heads to Newsom, who has until Oct. 14 to sign or veto themeasure.

SB 2 aims to balance compliance with the Supreme Court's decision in New York State Rifle & Pistol Association vs. Bruen withstringent limitationson who can obtain a concealedcarry permit inCalifornia. "The Supreme Court forced California to reevaluate how we do concealedcarry permits," Portantino said. "This is setting up a statewide standardtodetermine who should and shouldn't be trusted with the responsibility ofhaving a concealed-carry permit-.this justmakes sense."

The 6-3 decision by the high court's conservative majority focusedonwhether "may-issue" concealedcarry laws in states such as New York and California were constitutional, orwhen licensing authorities have broad discretion over granting an application. Most states have "shall-issue" laws, which largely guarantee a permit once an applicant meets licensing criteria. Gun owners in New York successfully argued that the state's "proper cause" requirement to earn a permit, like for self defense, was a Second Amendment violation. The decision immediately invalidated California's similar "good cause" standard as unlawful.

Writing for the courtmajority, Justice Clarence Thomas said that states could still ban firearms in a narrowed list of so-called sensitive places where firearms have historically been prohibited, such as schools, government buildings or polling places. But in a concurring opinion, Justice Brett Kavanaugh and Chief Justice John Roberts argued that states were also generally allowed to include objective licensingcriteriain theirapplicationprocess, including firearms training, fingerprinting and background and mental health checks.

Portantino'smeasure includesmore than two dozen "sensitive places" where concealed firearms would not be allowed, such as day care centers and schools, bars, college campuses, government buildings, medical facilities, parks and playgrounds and on public transit. The bill would alsomake commercial businesses automatically gun-free zones unless the owner explicitly indicates otherwise. The bill also maintains rigorous application requirements for licensing authorities, mainly county sheriffs, to determine whether someone is a "disqualified person" from obtaining a permit, a termthat opponents to SB2 see as another subjective term that wouldn'tpass constitutional muster.

The protocol includes conducting in-person interviews, obtaining character references and reviewing social media and other publicly available statements to identify safety risks. The bill requires an applicant to be 21, the same age required to buy a handgun, and bolsters training and safe storage rules. California lawmakers are working through hundreds of bills before the legislative session ends on Thursday. Among other action on Tuesday: · Lawmakers voted to become the first state to ban four chemicals from processedfoodanddrinks soldin California by 2027.

The chemicals-red dye no. 3, potassium bromate, brominated vegetable oil and propyl paraben - are still used in popular products like Peeps, the popular marshmallowchicks. Democratic Assemblymember Jesse Gabriel, the author of the bill, said those chemicals have already been banned by the European Union and other countries because of scientific research linking them to health problems, including cancer.

An earlier version of the bill would also have banned titanium dioxide, which is used in Skittles.But amendments inthe stateSenate removed that chemical from the ban. · The state Assembly approved a bill requiring companies making more than $500million annually to disclosewhat financial risks climate change poses to their businesses and how they plan to address those risks.

StateSen.HenryStern, a Democrat fromLos Angeles who introduced the legislation, said the information would be useful for individuals and lawmakers when making public and private investment decisions. The bill was changed recently to require companies to begin reporting the information in 2026, instead of 2024, and mandate that they report every other year, instead of annually.

The changes would help make it more feasible for businesses to followthrough with reporting requirements, said Anne DiGrazia, a spokesperson forStern. · The Legislature sent a bill to Newsom's desk that could create more so-called "cannabis cafes," inspiredby establishments in Amsterdam where customers can socialize and purchase cannabis, coffee and other products. The bill would allow local governments togive licenses to cannabis dispensaries to sell non-cannabis food, beverages and tickets to live music events. Democratic AssemblymemberMatt Haney of San Francisco, who introduced the bill, said it would give a boost to small cannabis businesses. The Los Angeles Times and The Associated Press contributed to this report.

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